

1 **SENATE FLOOR VERSION**

2 February 25, 2025

3 COMMITTEE SUBSTITUTE
4 FOR

5 SENATE BILL NO. 862

By: Wingard, Grellner,
Sacchieri, Jett, Bullard,
and Hamilton of the Senate

6 and

7 West (Kevin) of the House

8
9 An Act relating to emergency management; stating role
10 of government in emergencies; stating scope of
government authority; prohibiting certain actions;
11 creating felony offense; listing additional
punishments; providing for codification; and
12 providing an effective date.

13
14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 683.24C of Title 63, unless
17 there is created a duplication in numbering, reads as follows:

18 A. The constitutional role of government personnel, elected and
19 employed, and all government agencies, during emergencies and
20 disasters, is to aid residents of this state.

21 B. All government personnel, elected and employed, and all
22 government agencies have no authority to subvert the constitutional
23 rights of the residents of this state, even during times of
24 emergency or disaster.

1 C. All government personnel, elected and employed, and all
2 government agencies are prohibited from enacting or imposing any
3 actions subverting the constitutional rights of the residents of
4 this state, even during times of emergency or disaster.

5 D. Examples of actions that shall be considered subversions of
6 constitutional rights shall include:

7 1. Requiring or compelling residents to receive a shot,
8 vaccine, inoculation, or any other medical treatment;

9 2. Requiring or compelling residents to wear a mask or medical
10 device, with the exception of first responders and medical
11 personnel;

12 3. Restricting any right to medical treatment based on
13 vaccination status, confiscating personal property, restricting
14 constitutional freedoms, or restraining a patient involuntarily
15 unless otherwise required by law;

16 4. Requiring or compelling residents to show any documentation
17 of vaccination status that was not already required by law prior to
18 the emergency or disaster;

19 5. Imposing any unconstitutional law, regulation, or
20 restriction on businesses, churches, organizations, or residents
21 that was not codified in law prior to the emergency or disaster;

22 6. Restricting the rights of residents to exercise free speech,
23 to peaceably assemble and gather in large groups, and to petition
24 government for the redress of grievances, and restricting any other

1 First Amendment right in any way that was not codified in law prior
2 to the emergency or disaster;

3 7. Restricting the rights of residents to exercise any Second
4 Amendment right in any way that was not codified in law prior to the
5 emergency or disaster; and

6 8. Restricting the rights of residents to travel freely in any
7 way that was not codified in law prior to the emergency or disaster.

8 E. Any government official, elected or employed, who violates
9 the provisions of this section shall, upon conviction, be guilty of
10 a felony punishable by imprisonment in the custody of the Department
11 of Corrections for not more than five (5) years, a fine not more
12 than Fifty Thousand Dollars (\$50,000.00), or by both such
13 imprisonment and fine. The convicted government official shall also
14 be subject to:

15 1. Removal from his or her office or position;

16 2. Prohibition from holding any future elected or public
17 office;

18 3. A fine of Ten Thousand Dollars (\$10,000.00) per violation;
19 and

20 4. Personal assumption of all liability where the government
21 would otherwise be liable.

22 SECTION 2. This act shall become effective November 1, 2025.

23 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
24 February 25, 2025 - DO PASS AS AMENDED BY CS